

Court No. - 40

Case :- WRIT - C No. - 16406 of 2025

Petitioner :- Kanak Srivastava

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kamlesh Kumar Yadav

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard learned counsel appearing for the parties.
2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has prayed for the following substantial reliefs:

"I. a writ, order or direction in the nature of certiorari quashing the impugned order dated 25.03.2025 passed by the respondent no.3 (Annexure - 1).

II. a writ, order or direction in the nature of certiorari quashing the impugned electricity bills issued by the respondents authorities (Annexure - 9).

III. a writ, order or direction in the nature of mandamus commanding the respondents authorities to correct the electricity bills dues as well as electricity supply meter of the petitioner.

IV. a writ, order or direction of a suitable nature commanding the respondents authorities to provide essential electricity supply to the petitioner and install a new electricity meter in the name of the petitioner."
3. Counsel for the petitioner submitted that even though the order under Clause 6.5 of the UP Electricity Supply Code, 2005, has been passed pursuant to the earlier order passed by this Court but the same is without affording opportunity of hearing to the petitioner.
4. Counsel for the respondent-Power Corporation fairly submits

that the petitioner would be granted a specific date for the purpose of hearing and thereafter a fresh order would be passed after affording due opportunity.

5. Accordingly, we quash and set aside the impugned order dated 25.03.2025 passed by the respondent no.3, Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited.

6. The petitioner is directed to appear before respondent no.3 on 30.05.2025 at 11:00 AM and the respondent no.3 would thereafter pass a fresh order after affording opportunity of hearing to the petitioner and considering all the material evidence that the petitioner may produce in support of her case.

7. With the above directions, the writ petition is disposed of.

Order Date :- 21.5.2025
Shahroz

(Dr. Y.K. Srivastava,J.)

(Shekhar B. Saraf,J.)